

26VECV01762 26VECV01762

County: los-angeles

Division: Civil Law and Motion

Department: T

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26VECV01762 Gamliel v Mercedes

[TENTATIVE] ORDER: Defendant Mercedes-Benz USA, LLC's Motion to Compel Arbitration and Stay the Action are CONTINUED. The entire Action is STAYED and ABATED.

The Court sets an OSC re: Defect/Nonjoinder in Parties as to Non-Party Dream to Reality Development, Inc. for _____, 2026.

The Court sets an OSC re Monetary Sanctions of \$990.00 against Attorney Sybil Leung for _____, 2026.

Introduction

Defendant Mercedes Benz USA, LLC (Defendant) moved to compel arbitration and to stay Plaintiff Itay Gamliel's (Plaintiff) First Amended Complaint (FAC).

Procedure

The Court has concerns as to a potential defect or nonjoinder of parties. Plaintiff expressly alleged that Plaintiff is a co-lessee on the Motor Vehicle Lease Agreement (Lease). (FAC pars. 9-10.) The other co-lessee is non-party Dream to Reality Development, Inc. (Corporation) Defendant's motion attached a copy of the Lease and it also shows that Corporation is a co-lessee. As a co-lessee, Corporation has rights/liabilities under the Lease and would appear to be necessary or indispensable party for the resolution of all issues alleged in this action. However, Plaintiff failed to present/allege any facts as to Corporation's rights and how they are to be resolved.

Out of an abundance of caution, this action is STAYED and ABATED and the Court sets an OSC re: nonjoinder/defect in parties so that Plaintiff can resolve the defect in parties.

Defendant's motion included a citation to "Geier v. m-Qube Inc. (9th Cir. 2016) 548 F.3d 379, 382". (See Motion pg. 4:22-23.) The federal citation does not exist. The numerical citation corresponds to a case named Sherer v. Green Tree Servicing LLC (5th Cir. 2008) 548 F.3d 379. The "Geier v. M-Qube Inc." case name has a numerical citation of "(9th Cir. 2016) 824 F.3d 797." Due to the discrepancy in Defendant's citation, the Court finds that the citation is an Artificial Intelligence generated hallucination. The Motion is signed by Attorney Sybil Leung. The Court is authorized to levy sanctions against counsel for including fabricated citations generated by Artificial Intelligence. (Noland v. Land of the Free LP (2025) 114 Cal.App.5th 426,

444-448.) Because the hallucination is in the motion signed by Attorney Sybil Leung, the Court issues sanctions against Attorney Sybil Leung.

Attorney Sybil Leung is directed to pay \$990.00, payable to the Clerk of this Court, no later than 30 days after notice of this ruling. The Clerk is directed to deposit the sum into the Court's general fund.

The Sanctions Order is STAYED so that Attorney Sybil Leung can be given proper notice and opportunity to be heard on the monetary sanctions. The Court sets an OSC re: \$990.00 in sanctions against Attorney Sybil Leung on _____, 2026 at 8:30 a.m. Response to the OSC is due no later than 5 court days prior to the OSC hearing.